UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

MISC. NO. 08-26

IN RE: RULES OF PRACTICE AND PROCEDURE AND E-FILING RULES.

O R D E R

Pursuant to the authority of 38 U.S.C. § 7264(a) and consistent with 28 U.S.C. § 2071(b), the Court has determined that Rule 1 (Scope of Rules) of its Rules of Practice and Procedure (Rules) and the preface to its E-Filing Rules (E-Rules) should be revised to address implementation of the Appellate Case Management System (ACMS).

Accordingly, it is

ORDERED that the attached revised Rule 1 (Scope of Rules) and revised preface to the Court's E-Rules are hereby published and effective October 1, 2026.

DATED: September 24, 2026

FOR THE COURT:

/s/Tiffany M. Wagner
TIFFANY M. WAGNER
Clerk of the Court

Attachments:
1. Revised Rule 1
2. Revised Rule 1 with Changes Shown
3. Revised Preface to E-Rules
4. Revised Preface to E-Rules with Changes Shown

Rule 1: Scope of Rules

(a) Scope. These Rules, as supplemented by the E-Rules specifically applicable to submissions to the Case Management/Electronic Case Filing System (CM/ECF), govern practice and procedure in the U.S. Court of Appeals for Veterans Claims (the Court), a court of national jurisdiction. The E-Rules are on the Court's website at www.uscourts.cavc.gov/e_filing_rules.php.

For the purposes of the Court's Rules, and where appropriate, references to "CM/ECF" or "CM/ECF Users" include the Appellate Case Management System (ACMS) and ACMS Users, respectively.

(b) Effect on Court's Jurisdiction. Neither these Rules nor the E-Rules extend or limit the jurisdiction of the Court.

(c) CM/ECF / Non-CM/ECF Electronic Filing. Absent a waiver from the Clerk of the Court (Clerk), filing through the CM/ECF system is mandatory for all representatives (as defined by Rule 46(b)(1) (General Appearance)). *See* E-Rules 2 (Scope of Electronic Filing) and 3 (CM/ECF Eligibility, Registration, Passwords). Represented parties who have registered to file through CM/ECF are called CM/ECF Users. For CM/ECF Users, if there is any conflict between these Rules and the E-Rules, the E-Rules apply.

Self-represented parties and others exempted by the Court from filing through CM/ECF are called Non-CM/ECF Users. Non-CM/ECF Users may submit documents electronically by email or facsimile, if the submissions are properly formatted. *See* Rule 25(b) (Method and Timeliness). Where applicable in these Rules, the corresponding E-Rule has been cited.

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Case Management/Electronic Case Filing System (CM/ECF) E-Rules

The following E-Rules govern the submission of documents through the CM/ECF system in cases before the U.S. Court of Appeals for Veterans Claims (the Court). These E-Rules may be amended from time to time, with or without prior notice, by further order of the Court. The Court may deviate from these E-Rules in specific cases as deemed appropriate.

Beginning October 1, 2026, these E-Rules will also apply to the Court's new case management system, the Appellate Case Management System (ACMS). For the purposes of the Court's Rules, references to "CM/ECF" or "CM/ECF Users" include ACMS and ACMS Users, respectively. All new cases filed on or after October 1, 2026, will be filed in ACMS. All cases filed before that date will remain in CM/ECF. Rules specifically related to ACMS are forthcoming.

E-Rule 1 – Definitions

(a) For the purposes of these E-Rules:

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